Answer 1 · The Functions of the Certification Council (CSS 2022)

AT A GLANCE · CSS 2022 · Q6 · 20 MARKS

What are the functions of the Certification Council under the Electronic Transactions Ordinance, 2002?

The answer map

The Certification Council (Electronic Certification Accreditation Council) is a five-member body corporate set up under s. 18 to make digital signatures trustworthy. Its functions under s. 21 are to grant and renew accreditation, monitor accredited providers and suspend or revoke their accreditation, establish and manage the public repository, carry out research, recognise foreign providers, encourage uniform standards, advise any person and make recommendations to authorities. It performs them exclusively (s. 22), through approved practice statements, regulations and speaking orders within ninety days.



Figure 1 · The answer map: every branch is one numbered heading of the model answer below.

Decoding the question

"**What are the functions**" — a **list-and-explain** question. Start with the Council's establishment and composition briefly (ss. 18–19), then explain each function in **s. 21(2)** (a)–(i) with its supporting provisions (ss. 22–27, 43–44) and an example, and end with how the functions make electronic transactions trustworthy.

The model answer

1. Introduction — the guardian of digital trust

i) Definition

"**Certification Council**" means "the **Electronic Certification Accreditation Council** established under Section 18" (**s. 2(1)(i)**, Electronic Transactions Ordinance 2002). "The Certification Council shall perform such functions as are specified in this Ordinance or may be prescribed" (**s. 21(1)**).

ii) The argument

A digital signature is trustworthy only if the **certification service provider** that vouches for the signer is reliable. The Council is the regulator that **accredits** and **supervises** these providers, keeps a **public repository** of certificates, sets **standards** and **advises**. Its functions make possible the **presumption** of authenticity that the Ordinance gives to accredited advanced signatures (s. 9).

2. Establishment and status

i) Establishment

"Within **sixty days** of the promulgation of this Ordinance, the Federal Government shall, by notification in the official Gazette, constitute a Certification Council to be known as **Electronic Certification Accreditation Council**" (s. 18(1)).

ii) Status

It is "a **body corporate** with **perpetual succession** and a **common seal**", able to **sue and be sued** (s. 18(2)). It operates under the **Ministry of Information Technology and Telecommunication** and is known as **ECAC**.

3. Composition and qualifications

i) Members

Five members, **four** from the **private sector**, one designated chairman (s. 18(3)); appointed by the Federal Government for **three years**, re-appointable **once** (s. 18(4)); removable only for **misconduct** (s. 18(7)); with no **financial interest** in cryptography businesses (s. 18(8)); deciding by **majority**, the chairman having a **casting vote** (s. 18(9)).

ii) Qualifications — s. 19

A **telecommunications engineer** with seven years' experience including one in **cryptography**; **two** IT professionals or academics with seven years; an **administrator** with seven years; and an **advocate** with seven years and knowledge of **IT and telecom law**.

4. Function 1 — granting and renewing accreditation

i) The function

To "**grant and renew accreditation certificates** to certification service providers, their **cryptography services** and **security procedures**" (s. 21(2)(a)).

ii) How it is exercised

The Council accredits a provider, its cryptography services, its electronic or advanced signatures and security procedures that meet the **criteria in its regulations** (s. 24(1)); terms, duration and renewal are set by regulations (s. 24(2)); fees are prescribed (s. 24(3)); and the procedure must be **transparent** "with due regard to the **right of hearing**" (s. 24(4)). A provider must also submit its **certification practice statement** for approval (s. 25(3)).

iii) Illustration

SecureSign applies for accreditation. The Council checks its identity-verification process, key security and staff qualifications, approves its practice statement, and grants accreditation. Ms Sara's certificate from SecureSign then supports an **advanced** signature presumed genuine (s. 9).

5. Function 2 — monitoring, suspension and revocation

i) The function

To "**monitor and ensure compliance** by accredited certification service providers with the terms of their accreditation and **revoke or suspend** accreditation" (s. 21(2)(b)), and to "**monitor compliance** … with the provisions of this Ordinance" (s. 21(2)(c)).

ii) Due process

Suspension or revocation for non-compliance with the practice-statement rules may be ordered only "after providing **reasonable right of hearing**" (s. 25(7)), and notice must be posted in the **repository** (s. 23(4)).

6. Function 3 — the repository

i) The function

To "**establish and manage the repository**" (s. 21(2)(d)) — a database of all **accreditation certificates**, certificates issued by **accredited providers**, and other specified information (s. 23(1)).

ii) Its features

The Council must keep it **secure** (s. 23(2)); "all information contained in the repository shall be **open to public inspection**" (s. 23(3)); notices of **suspension or revocation** must be posted within the prescribed time (s. 23(4)). Its certificates are **public documents** (QSO Art. 85(6)), and a fee of up to **ten rupees** may be charged for each certificate deposited (s. 20(c)).

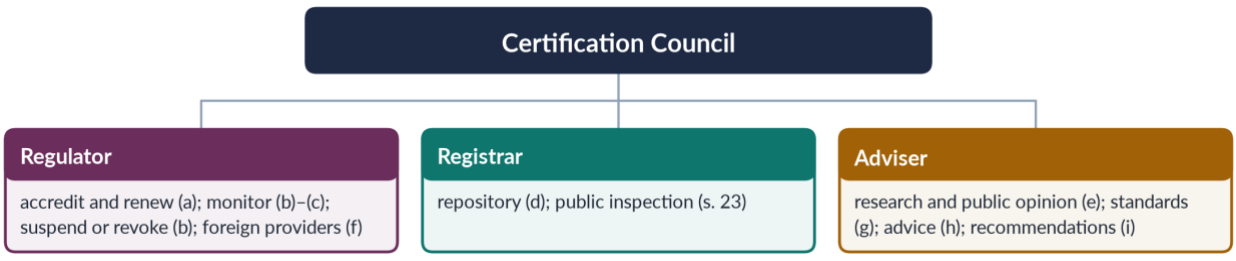


Figure 2 · The functions of the Certification Council (s. 21(2)).

7. Function 4 — research and public opinion

i) The function

To "carry out **research and studies** in relation to cryptography services and to obtain **public opinion** in connection therewith" (s. 21(2)(e)).

ii) Public consultation

All draft **rules and regulations** must be published in the Gazette and in an **English and an Urdu daily** at least **thirty days** before coming into force; the Council must record every comment and publish a **report** answering them (s. 44).

8. Function 5 — foreign certification service providers

i) The function

To "**recognize or accredit foreign** certification service providers" (s. 21(2)(f)).

ii) Why it matters

Cross-border trade needs foreign signatures to be trusted in Pakistan; regulations may provide for **cross-certification**, recognition and **bridge** arrangements with providers abroad (s. 43(2)(g)). If Gulf Garments in Dubai signs with a certificate from a recognised foreign provider, Pakistani courts can rely on it.

9. Function 6 — standards, advice and recommendations

i) Standards

To "**encourage uniformity of standards and practices**" (s. 21(2)(g)), supported by regulations on protocols, algorithms, certificate profiles and audit trails (s. 43(2)(k), (o)–(s)).

ii) Advice and recommendations

To "give **advice** to any person in relation to any matter covered under this Ordinance" (s. 21(2)(h)) and to make **recommendations** to an **appropriate authority** (s. 21(2)(i)) — for instance, on using accredited signatures in government e-services under s. 16.

10. Supporting powers — exclusivity, practice statements, regulations

i) Exclusive power

"Notwithstanding anything contained in the Pakistan Telecommunication (Re-organisation) Act, 1996", the Council is "**exclusively responsible**" to grant, renew, suspend or revoke accreditation (s. 22).

ii) Practice statements and regulations

It approves each provider's **certification practice statement** and its changes (s. 25(3)–(4)), and makes **regulations**, with the Federal Government's approval, on keys, time-stamping, staff qualifications, data privacy, inspections and reparation for negligence (s. 43).

11. How the functions are performed — transparency

i) Speaking orders

"All applications and matters coming before the Certification Council shall be decided through a **speaking order**, as expeditiously as possible but **not later than ninety days**" except in extraordinary circumstances with recorded reasons (s. 26).

ii) Resources

Funds come from **Government grants**, accreditation **fees**, the repository fee and **fines** (s. 20); it may appoint officers and advisers and open regional offices (s. 27). Accreditation decisions **cannot be delegated** to individual members (s. 18(6)).

12. Conclusion — a regulator for digital trust

i) Summary

The Council's functions are to **accredit** and **renew**; **monitor**, **suspend** and **revoke**; keep the **repository**; **research** and consult; recognise **foreign** providers; encourage **standards**; **advise**; and **recommend** (s. 21(2)) — exercised **exclusively** (s. 22), through practice statements, regulations and speaking orders (ss. 25–26, 43–44).

ii) The verdict

These functions make accredited signatures reliable enough for the law to **presume** them genuine (s. 9). In practice the Council has accredited institutions such as **NIFT**, which serves banks; its wider impact depends on making accredited certificates common in business and government.

Why this answer scores

- It sets the functions in context with the Council's establishment and expert composition.
- Each function of s. 21(2) is explained with its supporting sections.
- The repository, exclusivity and practice-statement powers show depth.
- Transparency rules (speaking orders, public consultation) are highlighted.
- The tree figure groups the nine functions into three roles.